RESET FORM

Retainer Agreement

Retainer Agreement:

"CLIENT" hereby agrees to hire the Eviction Landlord Group, Inc. dba Blueprint Evictions ("SERVICE PROVIDER") and Martin Lettunich ("ATTORNEY") for the sole purpose of preparing and filing Unlawful Detainer standard form documents pursuant to Client's directions regarding proceedings to be commenced in Santa Clara County. Please note that all court documents filed in this matter shall be filed on behalf of Client through the authority of the Attorney. The following fees are applicable in this matter:

CASE NAME:
Tenant(s):
Premises:

Premium Eviction Package:

The following legal services are included, and ATTORNEY'S obligation to represent CLIENT will automatically terminate upon entry of a judgment or dismissal.

DESCRIPTION OF SERVICES INCLUDED:

This is an all-inclusive package based on overall service, and fees are not broken down individually' this is also known as a 'flat fee agreement.' Said fees include the following: **TOTAL:**

- ✓ Paralegal Fees, Santa Clara County
- ✓ Attorney's Fees for one pretrial consultation with Client and one court appearance for trial representation
- ✓ Court Filing Fees
- ✓ Courier, eFile, Fax Filing Fees
- ✓ Process Serving Fees
- ✓ Prejudgment Claim of Right to Possession
- ✓ Ex Parte, Court Order for Posting
- ✓ Writ of Possession, Sheriffs Department Fee
- ✓ Courier, eFile, Fax Filing Fees
- ✓ Money Judgment+ Compliance with all state and local rules including local eviction moratoriums, Tenant Protection Ordinance, Apartment Rent Ordinance, California's Tenant Protection Act of 2019, and COVID-19 Tenant Relief Act of2020 plus subsequent addenda

Select your payment method:

☐ **Paper Check** (Eviction process begins when payment is received.)
☐ **Credit Card** (additional fees may apply)

Payable to: Martin Lettunich Attorney Trust Account
Mail to: 1060 Lincoln Ave, Suite 20-1022, San Jose, CA 95125
Note: The above address is a mail center for mailing only. If you prefer to drop off the check in person, email info@blueprintevictions.com to confirm.

Exclusions:

ATTORNEY has not been retained for appeal to a higher court, multiple day appearances on the same matter (when the matter is continued by the court), motions, jury trial or discovery such as, but not limited to, interrogatories production of documents, requests for admissions, and/or/depositions, demurrers, opposition, ex parte applications, motions of any kind, etc. ATTORNEY is available for said additional work at the rate of $450/hour, and a separate agreement must be mutually agreed upon before commencing. ATTORNEY may, at their sole discretion, associate another attorney to assist in the above matter.

Post-COVID Delays:

Client is aware that evictions conducted after the COVID-19 pandemic are subject to changing laws and court regulations, trial delays, and sheriff eviction delays, frequently due to court clerk backlog and understaffing.

Please be advised and aware of the fact that the filing of an unlawful detainer action does not automatically guarantee it will proceed to judgment or default. Client agrees to hold the Service Provider and Attorney harmless for such delays and/or the legal and financial costs incurred by client as a result of said delays, etc.

Refund Policy:

$1,000.00 non-refundable fee if the case is canceled prior to filing. $1,500.00 non-refundable fee if the case is canceled prior to the process servers making their first attempt to serve the occupants at the premises.

Service provider retains the right to substitute attorneys:

In the event that a change of attorneys becomes necessary, and/or current Attorney is not available, the Service Provider will facilitate the substitution of attorney needed for the matter to proceed. Client agrees to cooperate with the Service Provider in this matter.

If you have a trial, and your tenant does not perform under the agreement:

In the event that a trial is held and you enter into a settlement agreement, and the Defendant(s) does not vacate as agreed, and/or does not pay as agreed, and/or does not perform as agreed, the Attorney will notify the defendant by court-required methods, prepare additional paperwork, pay filing fees, and make an additional court appearance to obtain said judgment against the Defendant(s). If applicable, we will obtain a filed Writ and deliver lockout instructions to the Sheriff Department. Additional fee is $750, payable to the attorney prior to making the additional court appearance and will take approximately 2-3 weeks before the lockout occurs. However, the lockout timing is beyond the control of the Service Provider or Attorney.

Client/Authorized Agent: _____ **Date:** _____

BLUEPRINT EVICTIONS

Retainer Agreement

Martin N. Lettunich

Practicing in all aspects of Business,
Real Estate, Landlord/Tenant, and Civil Litigation Will,
Trusts, Estates and Probate Litigation

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(T) (408) 395-3100
(F) (408) 395-3120
losgatoslaw@gmail.com

Reciprocal Authorization

Eviction Landlord Group, Inc. dba Blueprint Evictions
1060 Lincoln Avenue, Suite 1022 San Jose, CA 95125
(referred to variously as "Provider" and/or "Service Vendor")

Matters regarding Case Name: _____

Superior Court of California, County of: _____

Reciprocal Authorization

(A) I/we hereby authorize my attorneys, Martin N. Lettunich, Esq. and any staff to discuss any personal business, to negotiate and to assume any other tasks on my/our behalf that are related to the above litigation or other financial situation with and to: Eviction Landlord Group, Inc. dba Blueprint Evictions and its other affiliates, subsidiaries, officers, employees, agents and representatives.

Reciprocal Authorization

(B) I/we hereby authorize Eviction Landlord Group, Inc. dba Blueprint Evictions, its other affiliates, subsidiaries officers, its employees, agents and representatives, to discuss my/our business on my behalf that are related to the law firm as set forth: Martin N. Lettunich, Esq.

This authorization is valid until revoked by the undersigned.

_____ _____

Client ***Date***

VERIFICATION

(446, 2015.5 C.C.P.)

I, the undersigned, hereby verify and declare that I am (check the appropriate box):

- ☐ a Plaintiff or one of the Plaintiffs in this action;

- ☐ a Property Manager and/or Agent for the Plaintiff's in this action, and I am making this verification on behalf of the Plaintiff, in that, I personally manage the premises which are the subject of this action, and have personal knowledge of the facts alleged in said Complaint;
  Name of Plaintiff/Vested Property Owner: _____

- ☐ the managing member for the Plaintiff, or one of the Plaintiffs in this action, which is a limited liability company;
  Name of LLC: _____

- ☐ a general partner for Plaintiff, or one of the Plaintiffs in this action, which is a:
  - ○ General Partnership Named: _____
  - ○ Limited Partnership Named: _____

- ☐ the Trustee for the Plaintiff Trust in the herein action;
  Name of the Trust: _____

- ☐ the Successor Trustee for the Plaintiff Trust in the herein action;
  Name of the Trust: _____

If signing in a representative capacity, I hereby verify that I am authorized to make this verification and that I am familiar with the facts alleged in the complaint. I have read the foregoing document Complaint for Unlawful Detainer and know the contents thereof and declare that the same is true of my own knowledge, except as to those matters which are herein stated upon my information or believe, and as those matters I believe to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. This verification was executed in the County of _____, California, dated _____.

x_____

Name (please print): _____

Title: _____